

Notice of Annual General Meeting

(CIN: L30007KA1991PLC039702)

NOTICE is hereby given that the **TWENTY-SIXTH ANNUAL GENERAL MEETING** of the Members of Mindteck (India) Limited will be held on Friday, August 11, 2017 at 12:00 Noon at Hotel Woodlands, "Sri Krishna Hall", No-5, Rajaram Mohan Roy Road, Bengaluru-560 025, to transact the following business:

AS ORDINARY BUSINESS:

1. Adoption of Financial Statements

To receive, consider and adopt the Audited Financial Statements including Consolidated Financial Statements of the Company for the financial year ended March 31, 2017, together with the Board's Report and Auditor's Report thereon.

2. Declaration of Dividend

To declare dividend of Re 1/- per Equity Share for the financial year ended March 31, 2017.

3. Re-Appointment of Mr. Meenaz Dhanani who retires by rotation

To appoint a Director in place of Mr. Meenaz Dhanani (DIN:06705048), who retires by rotation and being eligible, offers himself for re-appointment.

4. Appointment of Statutory Auditor and to fix their Remuneration

To appoint the Statutory Auditor to hold office from the conclusion of this meeting until the conclusion of the thirty first Annual General Meeting of the Company and to fix their remuneration and pass the following resolution:

"RESOLVED THAT pursuant to the provisions of Section 139, 141, 142 and all other applicable provisions of the Companies Act, 2013 and Rules made thereunder including any statutory modification(s) or re-enactment(s) thereof for the time being in force, S. R. Batliboi & Associates LLP, Chartered Accountants (Firm Registration No. 101049W/E300004), in respect of whom the Company has received the eligibility letter in writing and recommended by the Board, be and hereby appointed as Statutory Auditor of the Company for a period of five years, from the conclusion of this meeting until the conclusion of Thirty First Annual General Meeting, subject to ratification by Members of the Company at every Annual General Meeting on such remuneration as may be determined by the Board of Directors."

AS SPECIAL BUSINESS:

5. Appointment of Mr. Sanjeev Kathpalia as a Director

To consider and if thought fit, to pass with or without modification(s), the following Resolution as an **Ordinary Resolution**:

"RESOLVED THAT Mr. Sanjeev Kathpalia (DIN:05257060), appointed as an Additional Director under Article 114(a) of Articles of Association of the Company, Sections 152 and 161(1) of the Companies Act, 2013 and Rules made thereunder, by the Board on February 10, 2017 and in respect of whom the Company has received a notice in writing pursuant to the provisions of Section 160 of the Companies Act, 2013, from a Member signifying his intention to propose Mr. Sanjeev Kathpalia (DIN:05257060), as Director of the Company liable to retire by rotation, be and hereby appointed.

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to take such steps, actions and do things, deeds, matters, including the filing of necessary forms with Ministry of Corporate Affairs as may be required or are necessary, so as to give proper effect to this Resolution."

6. Appointment and payment of Remuneration to Mr. Sanjeev Kathpalia as Managing Director and Chief Executive Officer of the Company

To consider and if thought fit, to pass with or without modification(s), the following Resolution as a **Special Resolution**:

"RESOLVED THAT pursuant to Article 131 of Articles of Association and the provisions of Sections 196, 197 and 203 read with Schedule V of Companies Act, 2013 and all other applicable Acts, Rules and Regulations including any statutory modification(s) or re-enactment(s) thereof for the time being in force, SEBI (Listing Obligations & Disclosure Requirements) Regulations, 2015 and subject to such statutory approvals, such terms and conditions as may be stipulated by the Members in the general meeting and the Central Government while granting approvals in that behalf Mr. Sanjeev Kathpalia (DIN:05257060), a Resident, be and is hereby appointed as Managing Director & Chief Executive Officer of the Company, from March 01, 2017, for a period of three (3) years on a total remuneration of Rs.1,80,00,000/- (Rupees One Crore Eighty Lakhs only) per annum as stipulated in the employment agreement and recommended by the Nomination and Remuneration Committee of the Board, and agreed upon between the Board of Directors and Mr. Sanjeev Kathpalia with the authority to the Board of Directors to alter and vary the terms and conditions of the said appointee.

FURTHER RESOLVED THAT in the event of loss or inadequacy of profits in any financial year, notwithstanding anything to the contrary herein contained, the appointee shall be paid the above remuneration as the Minimum Remuneration as may be agreed to between the Board of Directors and the appointee.

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to take such steps, actions and do things, deeds, matters including the filing of necessary forms with Ministry of Corporate Affairs and obtaining necessary approvals from Central Government as may be required or are necessary so as to give proper effect to this Resolution."

7. Alteration to Articles of Association

To consider and if thought fit, to pass with or without modification(s), the following Resolution as a **Special Resolution**:

"RESOLVED THAT pursuant to Sections 5 and 14 of the Companies Act, 2013 read with applicable Rules made thereunder and Regulations including any statutory modification(s) or re-enactment(s) thereof for the time being in force, and subject to the necessary registrations, approvals, consents, permissions and sanctions required, if any, from the jurisdictional Registrar of Companies, and any other appropriate authority and subject to such terms, conditions, amendments or modifications as may be required or suggested by any such appropriate authorities, consent of the Members of the Company be and is hereby accorded for the amendment by replacing the entire existing Articles of Association of the Company by adopting Table F of Schedule I to the Companies, 2013.

8. Service of Documents to the Members by the Company

To consider and if thought fit, to pass with or without modification(s), the following Resolution as an **Ordinary Resolution**:

"RESOLVED THAT pursuant to the provisions of Section 20 of the Companies Act, 2013 and Rules prescribed there under, the consent of the Company be and is hereby accorded to charge from the Member a fee in advance equivalent to the estimated actual expenses for delivery of any document requested by a Member to be sent through post or registered post or speed post or courier or electronic or any other particular mode."

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to take such steps, actions and do things, deeds, matters as may be required or are necessary so as to give proper effect to this Resolution."

9. Preferential Issue of 64,299 Equity Shares to Black Horse Limited (Erstwhile Investor of Chendle Holdings Limited)

To consider and if thought fit, to pass with or without modification(s), the following Resolution as a **Special Resolution**:

"RESOLVED THAT pursuant to the provisions of Section 62(1) (c) and other applicable provisions, if any, of the Companies Act, 2013 and the relevant Rules prescribed thereunder including any statutory modification(s) or re-enactment(s) thereof for the time being in force and in accordance with the provisions of the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2009, as amended from time to time, Foreign Exchange Management Act, 1999 and such other Statutes, Notifications, Rules and Regulations as may be applicable and relevant, issued by the Reserve Bank of India ("RBI"), the Securities and Exchange Board of India ("SEBI"), Stock Exchanges and any other appropriate authorities, including the enabling provisions of the Listing Agreements entered into by the Company with the relevant Stock Exchanges and the provisions of the Memorandum of Association and the Articles of Association of the Company, subject to such approvals, consents, permissions of appropriate authorities, as may be required, and subject to such conditions and modifications as may be prescribed by any of them while granting such approvals, consents, permissions, the Board of Directors of the Company be and are hereby authorized by the Company to issue and allot 64,299 (Sixty Four Thousand Two Hundred and Ninety Nine) Equity Shares of Rs. 10/- (Rupees Ten only) each to Black Horse Limited, an Independent Shareholder of Chendle Holdings Ltd. on preferential issue basis through stock swap basis.

RESOLVED FURTHER THAT

- (i) The Equity shares so offered and allotted to the independent shareholder of Chendle Holdings Limited shall be subject to the provisions of the Memorandum of Association and the Articles of Association of the Company.
- (ii) The Equity shares shall rank pari passu in all respects with the existing Equity Shares of the Company, including entitlements to Dividend.
- (iii) The offer, issue and allotment of the aforesaid shares on a stock swap basis shall be made within 15 (Fifteen) days from the date of this Resolution approved by the shareholders in their Meeting. Provided that where the allotment is pending on account of pendency of any regulatory or Central Government approval(s), the allotment shall be completed within 15 (Fifteen) days of such approval(s).

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to take such steps, actions and do things, deeds, matters including the filing of necessary forms with Ministry of Corporate Affairs and obtaining necessary approvals from Stock Exchanges as may be required or are necessary so as to give proper effect to this Resolution."

10. Approval for Related Party Transaction with Mr. Meenaz Dhanani

To consider and if thought fit, to pass with or without modification(s), the following Resolution as an **Ordinary Resolution**:

"RESOLVED THAT pursuant to the provisions of Section 188(1) (f) of the Companies Act, 2013 read with the Companies (Meetings of Board and its Powers) Rules, 2014 and Regulation 23 of SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 as amended from time to time, consent of the Members be and is hereby accorded to enter into a Contract with Mr. Meenaz Dhanani, a Director of the Company to hold an office or place of profit as a President in Mindteck, Inc., USA a wholly owned subsidiary of the Company on a remuneration of USD 191,268 per annum along with all other benefits as per the Company Policy, payable by Mindteck, Inc., USA as approved by the Audit Committee and Board of Directors of the Company with effect from June 16, 2017.

RESOLVED FURTHER THAT the Board shall have the authority to revise the aforesaid salary together with allowances, benefits, amenities, facilities and other perquisites from time to time.

RESOLVED FURTHER THAT any Director or the Company Secretary of the Company be and are hereby severally authorized to file necessary e-Forms with Registrar of Companies, Karnataka and intimate the Stock Exchanges, as may be required and to do all such acts, deeds and things as may be necessary to give effect to the above resolution."

Registered Office:

A. M. R. Tech Park Block -1
3rd Floor, # 664, 23/24,
Hosur Main Road, Bommanahalli,
Bengaluru -560068 India.
May 22, 2017

BY ORDER OF THE BOARD for Mindteck (India) Limited

Shivarama Adiga S.
Vice President,
Legal and Company Secretary

Notes:

1. A Member entitled to attend and vote at the meeting is entitled to appoint a proxy to attend and vote on a poll instead of himself/herself and a proxy need not be a Member of the Company. A person can act as a proxy for not more than 50 Members and holding not more than 10% of the total Share Capital. Proxies, in order to be effective, must be received by the Company at its Registered Office not less than 48 hours before the commencement of the meeting.
2. Statement pursuant to Section 102 of the Companies Act, 2013, in respect of the Special Business is annexed hereto.
3. Corporate Members intending to depute their authorized representatives to attend the Annual General Meeting are requested to send a duly certified copy of the Board Resolution authorizing their representative(s) to attend and vote at the Annual General Meeting, as well as for exercising e-voting.
4. A blank Attendance Slip is annexed to this Annual Report. Members/proxies are requested to fill in their particulars on the

attendance slip, affix their signature in the appropriate place and hand it to Company's officials/Registrar at the entrance of the meeting venue.

5. Pursuant to Section 91 of the Companies Act, 2013 the Register of Members and Share Transfer Register shall remain closed from August 05, 2017 to August 11, 2017 (both days inclusive) for the purpose of Annual General Meeting and payment of dividend.
6. Subject to the provisions of the Companies Act, 2013, dividend as recommended by the Board of Directors, if declared at the Annual General Meeting, will be paid within a period of 30 days from the date of declaration, to those Members whose names appear on the Register of Members as on August 04, 2017.
7. The Register of Directors and Key Managerial Personnel and their shareholding, maintained under Section 170 of the Companies Act, 2013, will be available for inspection by the Members at the AGM.
8. The Register of Contracts or arrangements in which Directors are interested, maintained under Section 189 of the Companies Act, 2013, will be available for inspection by the Members at the Registered Office of the Company.
9. Members holding shares in dematerialized form are requested to intimate all changes pertaining to their updated e-mail IDs, Bank details, Electronic Clearing Services (ECS) or (NECS) compliant bank account numbers, mandates, nominations, Power of Attorney, change of address, change of name, etc., to their Depository Participant (DP). Changes intimated to the DP will then be automatically reflected in the Company's records that will help the Company and its RTA to provide efficient and better services. Members holding shares in physical form are requested to intimate such changes to their RTA, Universal Capital Securities Private Limited at 21/25, Shakil Niwas, Opp. Satya Saibaba Temple, Mahakali Caves Road, Andheri (East), Mumbai – 400093. Contact No. 022-2820 7203-05, Fax No. 022 -2820 7207. Attached please find a format to update your Electronic Clearing Services (ECS) and email IDs in the last page of this Annual Report.
10. MEMBERS HOLDING SHARES IN PHYSICAL FORM ARE REQUESTED TO CONSIDER CONVERTING THEIR HOLDING TO DEMATERIALIZED FORM TO ELIMINATE RISKS ASSOCIATED WITH THE PHYSICAL SHARES AND FOR EASE IN PORTFOLIO MANAGEMENT. MEMBERS CAN CONTACT UNIVERSAL CAPITAL SECURITIES PRIVATE LIMITED IN THIS REGARD.
11. Members intending to seek explanation/clarification/copy of any document at the meeting about the information contained in the Annual Report are requested to inform the Company at least a week in advance of their intention to do so, in order to make relevant information available, if the Chairman permits such information to be furnished.
12. Members who have not yet encashed their dividends for the previous years, and wish to claim any outstanding dividends are requested to write to the Company's Registrar. Members' attention is particularly drawn to the "Corporate Governance Report" of the Annual Report in respect of Unclaimed Dividends.
13. Pursuant to Schedule VII read with Regulation 40(7) of SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015, it is mandatory to furnish a PAN card copy of both transferor and transferee for the registration of transfer of shares in physical form with the Company's RTA.
14. As per Section 101 and 136 read with applicable Rules of the Companies Act, 2013 in addition to the Ministry of Corporate Affairs Circular Nos.17/2011 and 18/2011 dated April 21, 2011 and April 29, 2011 respectively, a 'Green Initiative in Corporate Governance' has allowed companies to send documents to shareholders through electronic mode. Accordingly the complete set of the Annual Report along with the AGM notice has been sent by e-mail to Members who have provided their e-mail addresses. Members are requested to support this initiative in full measure and contribute towards a greener environment by registering/updating their e-mail addresses, in respect of shares held in dematerialized form with their respective Depository Participants and in respect of shares held in physical form with the RTA. Those Members for whom the e-mail copies of Annual Reports were sent may write to the Company Secretary for a physical copy if needed. Members requiring any information or copies of financials of Subsidiary may write to the Company Secretary or inspect the same on the website of the Company under the Investors Section.
15. In compliance with the provisions of Section 108 of the Companies Act, 2013 read with Rules framed thereunder and Regulation 44 of SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015, Members are provided with the facility to cast their vote electronically through the e-voting services provided by NSDL on all resolutions set forth in this Notice. The instructions for e-voting are as under:
 - A. In case a Member receives an e-mail from NSDL (for Members whose e-mail addresses are registered with the Company/Depositories):
 - i. Open the email and also open PDF file named **"MINDTECK e-voting.pdf"** with your Client ID or Folio No. as the password. The said PDF file contains your user ID and password for e-voting. Please note that the password is an initial password.
 - ii. Open the internet browser and type the following **URL: <https://www.evoting.nsdl.com/>**
 - iii. Click on Shareholder–Login.
 - iv. If you are already registered with NSDL for e-voting, then you can use your existing user ID and password.
 - v. If you are logging in for the first time, please enter the user ID and password provided in the PDF file attached with the e-mail as initial password.
 - vi. The Password Change Menu will appear on your screen. Change to a new password of your choice, making sure that it contains a minimum of 8 digits or characters or a combination of both. Please take the utmost care to keep your password confidential.
 - vii. Once the e-voting home page opens, click on e-voting: Active Voting Cycles.
 - viii. Select **"EVEN"** (E-Voting Event Number) of Mindteck (India) Limited. Now you are ready for e-voting as Cast Vote page opens.
 - ix. Cast your vote by selecting appropriate option and click on **"Submit"** and also **"Confirm"** when prompted.

- x. Upon confirmation, the message "Vote cast successfully" will be displayed.
 - xi. Once the vote on the Resolution is cast, the Member shall not be allowed to change it subsequently.
 - xii. Institutional shareholders (i.e. other than individuals, HUF, NRI, etc.) are required to send a scanned copy (PDF/JPG format) of the relevant Board Resolution/ Authority letter, etc., together with attested specimen signature of the duly authorized signatory(ies) who are authorized to vote, to the Scrutinizer through email to **mindteck.scrutinizer@gmail.com** with a copy marked to **evoting@nsdl.co.in**
 - xiii. In case of any queries, you may refer to Frequently Asked Questions (FAQs) -Shareholders and e-voting user manual-Shareholders, available at the downloads section of **www.evoting.nsdl.com** or call on Toll Free Number- 1800 222 990.
- B. In case a Member receives a physical copy of the Notice of AGM (for Members whose e-mail addresses are not registered with the Company/Depositories):
- i. Initial password is provided in the enclosed ballot form: **EVEN** (E-Voting Event Number), user ID and password.
 - ii. Please follow all steps from Sl. No. (ii) to Sl. No. (xiii) above, to cast a vote.
- C. Other Instructions:
- i. The e-voting period commences on Tuesday, August 08, 2017 (9.00 a.m.) and ends on Thursday, August 10, 2017 (5.00 p.m.). During this period, Members of the Company holding shares either in physical form or in dematerialized form, as on August 04, 2017 (**Cut-off date**), may cast their vote electronically. The e-voting module shall be disabled by NSDL for voting thereafter.
 - ii. The voting rights of Members shall be in proportion to their shares of the paid- up equity share capital of the Company as on August 04, 2017 (**Cut-off date**).
 - iii. Those investors who became shareholders of the Company after dispatch of the AGM Notice and holding shares as of August 04, 2017 (**Cut-off Date**) may obtain the login ID and password by sending a request at **evoting@nsdl.co.in** or **shivarama.adiga@mindteck.com**. However, if you are already registered with NSDL for e-voting, then you can use your existing user ID and password for casting your vote.
 - iv. Mr. Gopalakrishnaraj H H., Practicing Company Secretary (Membership No. FCS 5654), has been appointed as the Scrutinizer to scrutinize the e-voting process (including the Ballot Form received from the Members, who do not have access to the e-voting process) in a fair and transparent manner.
 - v. The Scrutinizer shall, within a period not exceeding 24 hours from the conclusion of the Annual General Meeting, unblock all the votes in the presence of at least two witnesses not in the employment of the Company and make a Scrutinizer's Report of the votes cast in favour or against, if any, forthwith to the Chairman of the Company.
 - vi. Members who do not have access to the e-voting facility may send a duly completed Ballot Form (enclosed with the Annual Report) so as to reach the Scrutinizer appointed by the Board of Directors of the Company - Mr. Gopalakrishnaraj H H., Practicing Company Secretary (Membership No. FCS 5654) at the Registered Office of the Company not later than Thursday, August 10, 2017 (5.00 p.m.).
 - vii. Members have the option to request a physical copy of the Ballot Form by sending an email to **investors@mindteck.com** or **shivarama.adiga@mindteck.com** by mentioning their Folio/DP ID and Client ID No. However, the duly completed Ballot Form should reach the Registered Office of the Company not later than Thursday, August 10, 2017 (5.00 p.m.).
 - viii. Any Ballot Form received after this date shall be treated as invalid.
 - ix. A Member may opt for only one mode of voting – either through e-voting or by Ballot. If a Member casts votes by both modes, then voting done through e-voting shall prevail and Ballot shall be treated as invalid.
 - x. The results declared, along with the Scrutinizer's Report, shall be placed on the Company's website (**www.mindteck.com**) and on the website of NSDL (**www.evoting.nsdl.com**) within 48 hours of the passing of the Resolutions at the Twenty-Sixth AGM of the Company on August 11, 2017 and communicated to the Stock Exchanges, where the shares of the Company are listed.

EXPLANATORY STATEMENT PURSUANT TO SECTION 102 OF THE COMPANIES ACT, 2013

Item No. 5 & 6: Appointment of Mr. Sanjeev Kathpalia as Director liable to retire by rotation and Managing Director & Chief Executive Officer

Mr. Sanjeev Kathpalia (DIN:05257060) was appointed as an Additional Independent Director of the Company with effect from February 10, 2017, pursuant to Sections 152 and 161(1) of the Companies Act, 2013, read with Article 114(a) of the Articles of Association of the Company and subject to the approval of shareholders in the ensuing AGM.

Pursuant to the provisions of Sections 152 and 161(1) of the Companies Act, 2013, Mr. Sanjeev Kathpalia, will hold office up to the date of the ensuing AGM. The Company has received notice in writing under the provisions of Section 160 of the Companies Act, 2013, from a Member along with a deposit of Rs. 1,00,000/- (Rupees One Lakh Only) proposing the candidature of Mr. Sanjeev Kathpalia for the office of Director.

Mr. Sanjeev Kathpalia has given a declaration to the Company provided under Section 164 and other applicable provisions of the Companies Act, 2013 and SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015. In the opinion of the Board, the Director fulfills the conditions specified in the Companies Act, 2013 and Rules framed there under as well as SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015 for appointment as Managing Director & Chief Executive Officer of the Company.

The appointment of the Managing Director and Chief Executive Officer is placed before the Shareholders for approval.

The terms and conditions of appointment of the Managing Director and Chief Executive Officer shall be open for inspection by the Shareholders at the Registered Office of the Company during normal working hours on any working day, excluding Saturday and Sunday.

The major terms and conditions of his appointment are as follows:

A. Term of appointment: From March 01, 2017 to 29 February, 2020.

B. Compensation: The annual Remuneration of the Managing Director and Chief Executive Officer, Mr. Sanjeev Kathpalia shall be Rs 1,80,00,000/- (Rupees One Crore Eighty Lakhs only) as under:

Fixed Pay: Rs 1,25,00,000/- (Rupees One Crore Twenty Five Lakhs only)

Variable Pay: Rs 55,00,000/- (Rupees Fifty Five Lakhs only)

Stock Options: 5,00,000 (Five Lakhs Only)

Saving and retirement plans: As per the existing policy of the Company.

Insurance: Group Medical and Group Accident Policies.

Other Benefits: Leave as per existing Company policy.

C. The period of notice of termination: 90 Days.

D. The intention of the Company for the appointment of Mr. Sanjeev Kathpalia is to manage and control the Company's business and operations with the aim of securing significant, sustained increase in the value of the Company for its shareholders. He is entrusted with substantial powers of management of the operations, performance and all other areas of Mindteck and all its subsidiaries, subject to the superintendence, control and direction of the Board.

The Resolution seeks the approval of the Members in terms of Sections 196, 197, 203 read with Rules made thereunder along with Schedule V and other applicable provisions of the Companies Act, 2013 for the appointment of Mr. Sanjeev Kathpalia for a period of three (3) years from March 01, 2017.

The copies of relevant resolutions of the Board with respect to the appointment are available for inspection by the Members at the Registered Office of the Company during working hours on any working day till the date of the Annual General Meeting.

Details of Mr. Sanjeev Kathpalia, pursuant to the requirement of the SEBI (Listing Obligations & Disclosure Requirements) Regulations, 2015, relating to Corporate Governance, are given in the Annexure to this Notice.

None of the Directors and Key Managerial Personnel of the Company or their relatives is concerned or interested financially or otherwise, except Mr. Sanjeev Kathpalia and his relatives, in the Resolution set out at Item No. 5 & 6 of the Notice.

ADDITIONAL INFORMATION AS PER SECRETARIAL STANDARDS

Name	Mr. Sanjeev Kathpalia
Age	64 years
Date of Appointment	Mr. Kathpalia was appointed as an Additional Director of the Company on February 10, 2017 and Managing Director and Chief Executive Officer effective from March 01, 2017
Qualifications	Mr. Kathpalia holds an MBA from IIM Calcutta, and a Bachelor of Technology in Chemical Engineering from IIT Delhi.
Experience	Mr. Sanjeev Kathpalia is a seasoned strategist with over 35 years of global experience spanning executive roles in investment banking, manufacturing and business development.
Remuneration last drawn	USD 255,000 p.a. plus reimbursement of expenses of USD 24,000 p.a.
Shareholding in the Company	NIL
Relationship with other Directors/KMP of the Company	NIL
Number of Board Meetings attended during the financial year 2016-17	NIL
Directorships in other Companies	Wellcorp Health Services Private Limited
Chairman/Member of the Committee(s) of Board of Directors in other Companies in which he is a Director	NIL

Item No. 7: Alteration to Articles of Association

Upon enactment of the Companies Act, 2013 various provisions of the Companies Act, 1956 have been repealed and in view of the same the Articles of Association of the Company needs to be re-aligned as per the provisions of the new Act. Accordingly, it is proposed to adopt a new set of Articles of Association of the Company, as per **Table F of Schedule I** to the Companies Act, 2013 which sets out

the model Articles of Association for a Company limited by Shares, in place of the existing Articles of Association.

By virtue of Sections 5 and 14 of the Companies Act, 2013, approval of Members is required by way of Special Resolution in General Meeting to amend the Articles of Association of the Company. Accordingly, the Board of Directors of the Company seek the approval of the Members of the Company for the aforesaid alteration by way

of a Special Resolution. A copy of the altered Articles of Association will be available for inspection at the Annual General Meeting and such copy will be so made available for inspection in physical or in electronic form during normal working hours on any working day, except Saturday and Sunday at the Registered Office of the Company at A.M.R. Tech Park Block -1, 3rd Floor, # 664, 23/24, Hosur Main Road, Bommanahalli, Bengaluru - 560068.

None of the Directors and Key Managerial Personnel of the Company or their relatives is concerned or interested financially or otherwise, in the Resolution set out at Item No. 7 of the Notice.

The Board recommends the Resolution for the approval of the Members.

Item No. 8: Service of Documents to the Members by the Company

As per the provisions of Section 20 of the Companies Act, 2013, a Member may request for any document through a particular mode, for which the Member shall pay such fees as may be determined by the Company in its Annual General Meeting. Since the cost of providing documents may vary according to the mode of service, weight and its destination etc., therefore it is proposed that actual expense to be borne by the Company for such dispatch will be paid in advance by the Member to the Company.

None of the Directors and Key Managerial Personnel of the Company or their relatives is concerned or interested financially or otherwise, in the Resolution set out at Item No. 8 of the Notice.

The Board recommends the Resolution for the approval of the Members

Item No. 9: Preferential Issue of 64,299 Equity Shares to Black Horse Limited (Erstwhile Investor of Chendle Holdings Limited)

The Members of the Company in their Extra-Ordinary General Meeting held on February 05, 2008 had passed a special resolution under Section 372A of the Companies Act, 1956 approving the simultaneous investment/acquisition of the 100% issued and paid up capital of Chendle Holdings Ltd. (CHL).

The Company had also obtained the necessary approval from Foreign Investment Promotion Board (FIPB) on September 07, 2007 for the 100% acquisition of CHL as required by Reserve Bank of India (RBI). Further, the Company obtained the necessary in-principle approval for listing of the shares on BSE Limited, entered into Stock Purchase Agreement with the shareholders of CHL and acquired the entire share capital of CHL effective 1st April, 2008 on a stock swap basis.

According to the Stock Purchase Agreement, Mindteck had issued the shares on a share swap basis to those investors who had provided their Permanent Account Number (PAN) and reserved shares for other investors pending allotment till PAN is received. As per Regulation 72(1) of Securities and Exchange Board of India (Issue of Capital and Disclosure Requirements) Regulations, 2009, the preferential issue of Equity Shares can be allotted only to those who have PAN in India and can be issued only in dematerialised form. Presently, Black Horse Limited (an investor in erstwhile CHL), has provided PAN and other relevant documents, hence it is recommended by the Board to issue and allot the shares which were reserved for allotment.

Disclosures in terms of Section 62(1)(c) read with Rule 13 of The Companies (Share Capital and Debenture) Rules, 2014 and Regulation 73 of the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2009 are given as under:

- (i) **The objects of the preferential issue:**
To issue and allot 64,299 Equity Shares to Black Horse Limited, erstwhile investor of CHL on its acquisition by the Company on a share swap basis.

- (ii) **Total Number of shares issued:**
The total number of Equity shares to be issued is 64,299 Equity shares of Rs. 10/- each.
- (iii) **Price/Price Band at/within which the allotment is proposed:** Not Applicable as the issue is on share swap basis.
- (iv) **Basis on which the price has been arrived:** Not Applicable as the issue is on share swap basis.
- (v) **Relevant date with reference to which the price has been arrived at:** Not Applicable as the issue is on share swap basis.
- (vi) **Proposed time within which allotment will be completed:**
The allotment of the equity shares shall be made within 15 (Fifteen) days of the date of this Resolution. Provided that where the allotment is pending on account of any approval or permission by any regulatory Authority or the Central Government, the allotment shall be completed within 15 (Fifteen) days from the date of such approval(s) or permission, as the case may be.
- (vii) **The proposal of the Promoters, Directors, or Key Managerial Personnel of the Company to subscribe to the offer:**
None of the Promoters, Directors or Key Managerial Personnel intends to subscribe to the offer as the preferential issue of Equity Shares is on share swap basis to the erstwhile investor of CHL.
- (viii) **Class of persons to whom the allotment is proposed to be made:**
Black Horse Limited, a Company incorporated in Cayman Islands with its Registered Office situated at Paget-Brown & Company Limited, Second Floor, West Wind Building, Harbour Drive, P.O. Box 1111, George Town, Grand Cayman, British West Indies, who was an erstwhile investor of CHL, which has been acquired by Mindteck (India) Limited on share swap basis.
- (ix) **Justification for the allotment proposed to be made for consideration other than cash:**
The issue and allotment of 64,299 Equity Shares to Black Horse Limited, an erstwhile investor of CHL was pursuant to Stock Purchase Agreement with the shareholders of CHL for acquiring the entire share capital of CHL on a stock swap basis effective 1st April, 2008.
- (x) **Number of persons to whom allotment on preferential basis have already been made during the year:** NIL
- (xi) **Change in control, if any, in the Company that would occur consequent to the preferential offer:**
There is no change in the Management or control of the Company pursuant to the preferential issue of Equity shares.
- (xii) **Re-computation of the price of the Equity shares in terms of the provision of SEBI (ICDR) Regulations, 2009:** Not Applicable as the issue is on share swap basis.
- (xiii) **Amount payable on account of the re-computation of price if not paid within the time stipulated in SEBI (ICDR) Regulations, 2009, the Equity shares shall continue to be locked-in till the time such amount is paid by the allottees:** Not Applicable as the issue is on share swap basis.

(xiv) **Shareholding pattern of the Company before and after the preferential issue:**

Sl. No.	Category	Pre-Issue		Post-Issue	
		No. of shares held	% of shareholding	No. of shares held	% of shareholding
A	Promoters' Holding:				
1	Indian:	-	-	-	-
	Individual	-	-	-	-
	Body Corporate	-	-	-	-
	Sub-Total	-	-	-	-
2	Foreign Promoters	16,431,604	64.73	16,431,604	64.57
	Sub Total (A)	16,431,604	64.73	16,431,604	64.57
B	Non-Promoters Holding				
1	Institutional Investors	25	0.00	25	0.00
2	Non-Institution:				
	Private Corporate	243,288	0.96	243,288	0.96
	Directors and Relatives	50,000	0.20	50,000	0.20
	Indian Public	3,426,269	13.50	3,426,269	13.46
	Others (Including NRI's)*	5,232,709	20.61	5,297,008	20.81
	Sub Total (B)	8,952,291	35.27	9,016,590	35.43
	GRAND TOTAL	25,383,895	100.00	25,448,194	100.00

*Post issue Shareholding includes Preferential Issue of 64,299 Equity Shares to Black Horse Limited

(xv) **Identity of the proposed allottees and the percentage of post preferential issue capital that may be held by the said allottees:**

Identity of proposed allottees	No. of Equity Shares to be allotted	Percentage of post issue Equity Capital
Black Horse Limited	64,299	0.25

The ultimate beneficial owners of the shares proposed to be allotted are as under:

Sl. No.	Name of the Ultimate Beneficial Owner	Percentage of Shareholding in Black Horse Limited
1	Mr. Abdullah Saeed Mohammed Al Maddah	25%
2	Mr. Mamdooh Saeed Mohammed Al Maddah	25%
3	Mr. Marwan Saeed Mohammed Al Maddah	25%
4	Mr. Ayman Saeed Mohammed Al Maddah	25%

Auditor's Certificate:

The Statutory Auditor's Certificate stating that the above preferential issue is in accordance with the SEBI (Issue of Capital and Disclosure Requirements) Regulations, 2009 will be kept open for inspection at the Registered Office of the Company during normal working hours on any working day, except Saturday and Sunday up to the date of the Annual General Meeting. Copies of the above mentioned Certificate shall also be laid before the Annual General Meeting.

None of the Directors and Key Managerial Personnel of the Company or their relatives is concerned or interested financially or otherwise, in the Resolution set out at Item No. 9 of the Notice.

The Board recommends the Resolution for the approval of the Members.

Item No. 10: Approval for Related Party Transaction with Mr. Meenaz Dhanani

The Re-appointment of Mr. Meenaz Dhanani as an Executive Director of the Company for a period of three (3) years with effect from October 04, 2016 was approved by the Members in the 25th Annual General Meeting of the Company held on August 11, 2016, subject to the approval of the Central Government. Subsequently, the application was filed with Ministry of Corporate Affairs (MCA) and approval was not accorded by MCA on a technical ground as per its letter dated June 16, 2017. Mr. Meenaz Dhanani has been the President of Mindteck, Inc., since May 08, 2014 and has been responsible for the day to day operations of Mindteck, Inc. and reports directly to the Managing Director and Chief Executive Officer

of the Company. In order to have efficient controls and processes, the Board of Directors have approved to retain Mr. Meenaz Dhanani as a Non-Executive Director of the Company on the terms and conditions as set out in the Resolution for managing the business of Mindteck, Inc. effective from June 16, 2017 on the same existing remuneration of USD 191,268 per annum, which may be revised by the Board of Directors from time to time.

Since the payment of remuneration to Mr. Meenaz Dhanani from Mindteck, Inc., a wholly owned subsidiary, requires the approval

of the shareholders under Section 188(1)(f) of the Companies Act, 2013 and Rules made thereunder by Ordinary Resolution, the approval of the shareholders is sought now. The monetary value of the payment to related party for holding the place of profit is embodied in the resolution.

The particulars of the transaction pursuant to para 3 of Explanation (1) to Rule 15 of Companies (Meeting of Board and its Powers) Rules, 2014 are as under:

Name of the Related Party	Mr. Meenaz Dhanani, a Director of Mindteck (India) Limited
Name of the Director or Key Managerial Personnel who is related, if any	Mr. Meenaz Dhanani
Nature of relationship	President of Mindteck, Inc., a wholly owned subsidiary from which Mr. Meenaz Dhanani draws remuneration.
Nature, Material Terms, Monetary Value and Particulars of the Contract or Arrangement	Mr. Meenaz Dhanani, a Director of the Company be paid a remuneration of USD 191,268 per annum along with all other benefits as per the Company Policy, by Mindteck Inc., USA with effect from June 16, 2017 as embodied in the resolution given in Item No. 10.
Any other information relevant or important for the Members to take a decision on the proposed Resolution.	All the relevant details/information as required under the law is provided in the Resolution set out in Item No. 10 and relevant Explanatory Statement.

None of the Directors and Key Managerial Personnel or their relatives, except Mr. Meenaz Dhanani and his relatives, is concerned or interested financially or otherwise, in the above resolution set out at Item No. 10.

The Board recommends the Resolution for the approval of the Members.

Registered Office:

A. M. R. Tech Park Block -1
3rd Floor, # 664, 23/24,
Hosur Main Road, Bommanahalli,
Bengaluru -560068 India.
May 22, 2017

**BY ORDER OF THE BOARD
for Mindteck (India) Limited**

Shivarama Adiga S.
Vice President,
Legal and Company Secretary

Annexure to the Notice

INFORMATION PURSUANT TO REGULATION 36(3) OF SEBI (LISTING OBLIGATIONS AND DISCLOSURE REQUIREMENTS) REGULATIONS, 2015 REGARDING APPOINTMENT AND RE- APPOINTMENT OF DIRECTOR

Name of the Director	Mr. Sanjeev Kathpalia	Mr. Meenaz Dhanani
Date of Appointment/ Last Re-appointment	February 10, 2017	October 04, 2016
Brief Resume and nature of expertise in specific functional areas	Mr. Sanjeev Kathpalia is a seasoned strategist with over 35 years of global experience spanning executive roles in investment banking, manufacturing and business development. Most recently, Mr. Kathpalia served as a Senior Advisor for the Republic of Turkey – Prime Ministry, Investment Support and Promotion Agency of Turkey. Prior to this, Mr. Kathpalia was the Chairman of PDF Corporate Finance (a subsidiary of TAIB YatirimBank), a leading Istanbul-based M&A boutique focused on mid-market opportunities. He was also the CEO at TAIB YatirimBank, the first foreign owned investment bank in Turkey. Previous industry experience includes leading the supply chain and R&D divisions of an industrial manufacturing company (part of ETEX Group of Belgium), as well as supply-side management of consumer goods giant Hindustan Unilever Ltd./Unilever Group. Mr. Kathpalia holds an MBA from IIM Calcutta, and a Bachelor of Technology in Chemical Engineering from IIT Delhi.	Mr. Dhanani is a 30-plus year New York investment banking veteran with experience and deep knowledge spanning international credit, trade and project finance, corporate finance, real estate investment, private equity and venture capital investment. Prior to joining the senior management team at Mindteck, Mr. Dhanani ran the investment advisory subsidiary of Bahrain-based TAIB Bank where he was directly responsible for managing the firm's US real estate portfolio and technology services companies. Mr. Dhanani, a B.A. graduate of Bernard M. Baruch College who majored in Finance and Investment Analysis, has held NASD Series 63 and 7 licenses and has numerous certifications in various disciplines related to investment banking and asset management.
List of other Listed Companies in which Directorship is held	NIL	NIL
Chairman/Member of the Committee(s) of Board of Directors of other Listed Companies in which he is a Director	NIL	NIL
Shareholding/ Stock Options in the Company	500,000 Stock Options	100,000 Stock Options
Relationship with other Directors/KMP of the Company	NIL	NIL